

|   |                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|---|----------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                                      | <p>those allegations satisfy the pleading requirements established by California law”]; see also Compl. at att. A.)</p> <p><u>Third cause of action for “other.”</u> The complaint fails to state facts sufficient to constitute the third cause of action for “other.” With respect to this claim, the complaint alleges, verbatim: “Defendants all agreed to turn the claim into their insurance or clients insurance and the damage would be taken care of by the insurance end or clients, and or themselves depending on which defendant you are talking too and it has not been .. [Sic.]” (Compl. ¶ 10f.) This fails to identify a theory of liability or state facts that give rise to a cognizable claim.</p> <p>Moving party shall give notice.</p>                                                        |
| 6 | <b>Farago vs. Hoag Memorial Hospital</b><br><br><b>2026-01540129</b> | <p><b>Motion for Preference</b></p> <p>Plaintiff Shirley Farago’s motion for trial preference is DENIED WITHOUT PREJUDICE. There is currently no evidence that plaintiff’s “health ... is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” (Code Civ. Proc., § 36, subd. (a)(2); Farago Decl., ¶ 8 [stating only that plaintiff’s health is “uncertain”].)</p> <p><i>Case Management Conference set for December 18, 2026 at 8:30 a.m. in Department C44.</i></p> <p>Defendant Thomas Velling, M.D. shall give notice.</p>                                                                                                                                                                                                                                        |
| 7 | <b>Guerrero vs. Ford Motor Company</b><br><br><b>2025-01518104</b>   | <p><b>Demurrer to Amended Complaint</b></p> <p>As a preliminary matter, Code of Civil Procedure section 430.41 provides that before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the opposing party. Counsel for Ford failed to adequately meet and confer with opposing counsel prior to filing this demurrer and motion to strike. (Code Civ. Proc. §§ 430.41(a); 435.5(a).) Sending an email is insufficient. Counsel is advised to comply with the Code prior to filing any future motions. Failure to do so could result in a denial of the motions.</p> <p>In the interest of judicial economy, the Court exercises its discretion to hear the demurrer and motion to strike since they have been opposed by Plaintiff on the merits.</p> |

|  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|--|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  | <p>Defendant Ford Motor Company’s Demurrer to the sixth cause of action of the First Amended Complaint (FAC) is OVERRULED.</p> <p>Defendant Ford demurs to the sixth cause of action for fraudulent inducement-concealment.</p> <p>[T]he necessary elements of a concealment/suppression claim consist of (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage. Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship.” (<i>Dhital v. Nissan North America</i> (2022) 84 Cal.App.5th 828, 843.)</p> <p><i>Dhital</i> is directly on point. In <i>Dhital</i>, the court found a cause of action for fraudulent concealment was sufficiently plead where the “plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.” (<i>Dhital</i>, supra, 84 Cal.App.5th at 844.)</p> <p>Similarly, Plaintiff alleges the transmission had one or more defects that can result in “(1) hesitation or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4) shuddering, or juddering; (5) surging and/or inability to control the vehicle's speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"), (7) failure or replacement of the transmission ("Transmission Defect").” (FAC, ¶ 62.) These conditions present a safety hazard because they can suddenly and unexpectedly cause the driver to be unable to control the speed and acceleration/deceleration of the vehicle. (<i>Ibid.</i>)</p> <p>The FAC further alleges Ford had knowledge of such defects prior to Plaintiff acquiring the vehicle through sources not available to consumers such as Plaintiff, including but not limited to pre-production testing data; early consumer complaints about the Transmission Defect; testing conducted by Ford in response to these complaints; warranty repair and part replacements data</p> |
|--|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|--|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  | <p>received by Ford; as well as other internal sources of information possessed by Ford. (FAC, ¶ 63.)</p> <p>Prior to purchasing the Vehicle, Plaintiff reviewed Ford’s marketing and advertising materials, and interacted with sales representatives. At no time prior to the purchase did GM disclose the defective nature of the 6-speed Transmission. (FAC, ¶ 65.)</p> <p>Ford contends Plaintiff failed to allege a fiduciary or transactional relationship that would give rise to a duty to disclose. This argument was rejected in <i>Dhital, supra</i>. The court in <i>Dhital</i>, held that a fraud claim was not barred even though there was no direct relationship between the buyer and manufacturer, because the buyer purchased from an authorized dealership, the manufacturer backed the vehicle with an express warranty, and the manufacturer’s authorized dealerships were its agents for purposes of vehicle sales. (<i>Dhital, supra</i>, 84 Cal.App.5th at p. 844.) All such facts are alleged in the FAC.</p> <p>Accordingly, Plaintiff has stated adequate facts to support her claim for fraudulent concealment and inducement, and the demurrer to the sixth cause of action is OVERRULED.</p> <p><b>Motion to Strike Portions of Complaint</b></p> <p>Defendant Ford Motor Company’s Motion to Strike is DENIED.</p> <p>Ford seeks to strike from the FAC any claim for punitive damages and Plaintiff’s claim for civil penalties.</p> <p>A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) A motion to strike can be used to attack claims for damages that are not supported by the cause of action pleaded. (Code Civ. Proc., § 431.10, subd. (b)(3).)</p> <p><i>Punitive Damages</i></p> <p>Civil Code section 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. <i>See</i></p> |
|--|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|   |                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
|---|----------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                          | <p><i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6 (allegations that defendant was guilty of “oppression, fraud and malice” could not be stricken where the complaint contained sufficient facts to support such allegation.).</p> <p>Defendant argues that Plaintiff failed to identify a specific managing agent of the corporation that ratified the fraud. In <i>Dhital</i>, the court held that the manufacturer’s authorized dealership were its agent for purposes of the sale of its vehicles to the consumers, and that this relationship was sufficient to establish a duty to disclose – without requiring the identification of a specific individual. Liability was established through the manufacturer’s agents.</p> <p>As ruled above, Plaintiff has alleged sufficient facts to state a cause of action for fraudulent concealment, and thus grounds for an award of punitive damages.</p> <p>Accordingly, the motion to strike punitive damages is DENIED.</p> <p><i>Civil Penalties</i></p> <p>Ford argues Plaintiff’s request for civil penalties should be stricken because she failed to allege she complied with the new notice requirements for the Song-Beverly cases established by CCP § 871.24(a).</p> <p>But paragraph 23 of the FAC states that “Plaintiff made a request for repurchase of the Subject Vehicle compliant with the requirements of CCP 871.24. Defendant has failed to timely comply with its obligations under the Act.”</p> <p>Such allegation is sufficient to comply with Section 871.24. Accordingly, the motion to strike civil penalties is DENIED.</p> <p>Clerk to give notice.</p> |
| 8 | <b>Libertucci vs. Cooper</b><br><br><b>2023-01370576</b> | <b>Motion for Sanctions</b><br><br>No tentative.<br><br><b>Order to Show Cause re: Failure to Appear</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 9 | <b>Wei vs. Sarkis</b><br><br><b>2025-01509812</b>        | <b>Demurrer to Complaint</b><br><br>Defendants Anthony M. Sarkis and Shivangini Chudhary’s                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |